



CHAPTER xxxviii.

An Act to change the name of the Croydon Commercial Gas and Coke Company to "the Croydon Gas Company" and to confer further powers on the Company with respect to the raising of additional capital the construction and maintenance of additional gasworks and for other purposes. A.D. 1904.
—
[24th June 1904.]

WHEREAS the Croydon Commercial Gas and Coke Company (in this Act called "the original Croydon Company") were incorporated by the Croydon Commercial Gas and Coke Act 1847 and further powers were conferred upon them by the Croydon Gas Act 1860 the Croydon Gas Act 1866 the Croydon Gas Act 1877 (in this Act called "the Croydon Act of 1877") and the Croydon Gas Act 1887 and pursuant to those Acts the said Company were empowered to manufacture gas and supply the same within the town and parish of Croydon and the parishes of Addington Beddington Coulsdon and Sanderstead all in the county of Surrey :

10 & 11 Vict.
c. cxxiv.
23 Vict.
c. xxvii.
29 Vict.
c. xvi.
40 & 41 Vict.
c. clxxvi.
50 & 51 Vict.
c. clxvi.

And whereas the Carshalton Gas Company (in this Act called "the Carshalton Company") were incorporated and empowered by the Carshalton Gas Act 1877 (in this Act called "the Carshalton Act of 1877") to manufacture gas and supply the same to certain parts of the parishes of Carshalton and Beddington and to the hamlet of Wallington and the parish of Woodmansterne all in the county of Surrey the limits whereof are shown by a red line upon a plan signed by Henry Cecil Raikes and deposited in the Private Bill Office of the House of Commons and copies of which are also deposited with the clerk of the peace for the county of Surrey and the clerk of the Epsom Rural District Council :

40 & 41 Vict.
c. clxxv.

And whereas by the Croydon Gas Act 1894 (in this Act called "the Act of 1894") the Carshalton Company was as on and from

57 & 58 Vict.
c. liv.

A.D. 1904. the first day of July one thousand eight hundred and ninety-four dissolved and amalgamated with the original Croydon Company the amalgamated Company (in this Act called "the Company") retaining the name of the Croydon Commercial Gas and Coke Company and it was enacted that the district to be supplied by the Company should be and include the whole of the districts then supplied by the Carshalton Company and the original Croydon Company :

And whereas under the Act of 1894 the capital of the Company was to be the aggregate authorised capitals of the Carshalton Company and the original Croydon Company immediately previous to the time of the amalgamation and power was given to the Company to consolidate the shares therein in separate stocks :

And whereas the issued capital of the Company now consists of the following consolidated ordinary stocks (that is to say) :—

Fifty-one thousand six hundred pounds of A stock entitled to a standard dividend of ten per centum per annum subject to increase or decrease in accordance with the decrease or increase in the price charged by the Company for gas supplied by them within the district formerly supplied by the original Croydon Company ;

One hundred and seventy-eight thousand four hundred pounds of B stock entitled to a standard dividend of seven per centum per annum subject to increase or decrease in accordance with the decrease or increase in the price charged by the Company for gas supplied by them within the district formerly supplied by the original Croydon Company ;

Eighty thousand pounds of C stock entitled to a standard dividend of seven per centum per annum subject to increase or decrease in accordance with the decrease or increase in the price charged by the Company for gas supplied by them within the district formerly supplied by the Carshalton Company :

And whereas the Company have under the powers of the Carshalton Act of 1877 and of the Act of 1894 power to issue a further amount of the said C stock not exceeding twenty thousand pounds :

And whereas the Company have under the powers of the Croydon Act of 1877 and the Carshalton Act of 1877 borrowed on mortgage of the undertaking or by the issue of debenture stock the sum of thirty-seven thousand five hundred pounds and are

under the powers of those Acts entitled to borrow a further sum of A.D. 1904.
seven thousand five hundred pounds :

And whereas the demand for gas within the limits supplied by the Company has greatly increased and is increasing and it is expedient that the Company be authorised to extend and improve their gasworks and that additional capital be provided for such extension improvement and for the general purposes of the Company's undertaking :

And whereas it is expedient that the provisions hereinafter contained be made :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Croydon Gas Act 1904.

Short title.

2. The following Acts or parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say) :—

Incorporation of Acts.

The Gasworks Clauses Act 1847 except sections 31 32 33 and 34 Provided that section 13 of the said Act shall be read as if the words "or any premises" were inserted after the words "private building" :

The Gasworks Clauses Act 1871 :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

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The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

The Companies Clauses Act 1863 as amended by subsequent Acts.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Power to Company to raise additional capital.

4.—(1) The Company may from time to time raise additional capital not exceeding in the whole three hundred thousand pounds by the creation and issue of new ordinary stock to be called D stock but any such stock shall not vest in the person or corporation accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of three hundred thousand pounds.

(2) The holders of D stock shall be entitled to a fixed maximum dividend of five per centum per annum. Provided that if in any half year the dividend paid upon the B stock of the Company shall be at a less rate than five per centum per annum the D stock shall for the purposes of dividend rank *pari passu* with the B stock.

New stock to be subject to same incidents as other stock.

5. Except as by this Act otherwise provided the capital in new stock created by the Company under this Act and the new stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new stock were stock in that capital.

New stock to form part of capital of Company.

6. The capital in new stock so created shall form part of the capital of the Company.

Sale of unissued stock by offer at a fixed price.

7.—(1) Notwithstanding anything in this Act contained when any stock created under the powers of this Act is to be issued and whether the stocks of the Company or any of them are or is at a

premium or not the Company before offering the same to the holders of any other stock of the Company or for sale by public auction or tender may (with the approval of the Board of Trade to be signified in writing under the hand of an assistant-secretary of that Board) offer to all the gas consumers and persons in the employ of the Company the stock so to be issued at as near as may be the average market price in the month immediately preceding such offer provided that in no case shall the price at which such stock shall be offered be lower than five per centum below such average market price. A.D. 1904.

(2) To ascertain the average market price aforesaid of the stock in the month immediately preceding an offer to consumers and employees the mean daily quotations recorded in the official published list of the London Stock Exchange shall be taken for the last four completed weeks.

8. Subject to the provisions hereinbefore contained the Company shall when any stock created under the powers of this Act is to be issued and before offering the same to the holder of any other stock in the Company and whether the stocks of the Company or any of them are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of stock and that the reserved price put upon such stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of stock in the Company. Sale of stock by auction or tender.

9. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale. Purchase money of capital sold to be paid within three months.

10. The intention to sell any such stock whether to the gas consumers or to persons in the employ of the Company or by auction or by tender shall be communicated in writing to the town clerk of every borough and to the clerk of the council of Notice to be given as to sale of stock.

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every district wholly or partly included in the limits of supply of the Company and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits.

Disposal of
stock not
sold by auc-
tion or ten-
der.

11. When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender. Provided always that any stock not so disposed of shall again at such time as the directors of the Company shall determine be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act except that the reserved price put upon such stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any stock not then sold may be disposed of by the directors at not less than the last-mentioned reserved price and so from time to time until the whole of such stock is sold.

Application
of premium
arising on
issue of
stock.

12. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend. Provided that the premium received from the sale of stock by auction or tender as hereinbefore provided shall for the purpose of determining the powers of the Company to raise money by borrowing or the amount which the Company may set aside as an insurance fund be reckoned as part of the paid-up capital.

Power to
borrow.

13. The Company may at any time after the passing of this Act borrow on mortgage of the undertaking in respect of the A B and C stocks any sum or sums not exceeding in the whole (inclusive of the sum of thirty-seven thousand five hundred pounds already borrowed by them and of any premium to be received under the provisions hereinafter contained on the creation and issue of mortgage debentures or debenture stock in exercise of such borrowing powers) one third of the nominal amount of such stocks.

14. The Company may subject to the provisions of this Act in addition to any moneys which they are authorised to borrow as aforesaid borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (inclusive of any premium to be received under the provisions hereinafter contained on the creation and issue of mortgage debentures or debenture stock in exercise of such further borrowing powers) one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by stock but no part thereof shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

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Further
power to
borrow.

15. No higher rate of interest than five per centum shall be paid by the Company in respect of any moneys borrowed by the Company after the passing of this Act and secured as aforesaid.

Interest on
money bor-
rowed.

16. Section 19 of the Croydon Act of 1877 (Appointment of a receiver) and section 43 of the Carshalton Act of 1877 (For appointment of a receiver) are hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act and in lieu thereof the mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Appointment
of receiver.

17. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this Act or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts

Debenture
stock.

A.D. 1904. of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act.

Conditions as to issue of mortgage debentures or debenture stock.

18. It shall not be lawful for the Company to create and issue any mortgage debentures or debenture stock except subject to and in accordance with the following provisions (that is to say):—

- (1) The Company shall offer the same for sale by public auction or by tender in such manner at such time and subject to such conditions of sale as the Company shall from time to time determine. Provided that notice of the amount of the reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner:
- (2) The intention to sell any such mortgage debentures or debenture stock by auction or by tender shall be communicated in writing to the town clerk of every borough and to the clerk of the council of every district wholly or partly included in the limits of supply of the Company and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits:
- (3) Any sum of money which shall arise from the issue of any such mortgage debentures or debenture stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company and shall not be considered as entitled to dividend or interest.

Priority of mortgages and debentures.

19. All money raised or to be raised by the Company on mortgage or debenture stock under the provisions of any former

Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

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ture stock
over other
debts.

20. The principal moneys secured by all mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages have priority over the principal moneys secured by any mortgages granted by virtue of this Act.

Priority of
principal
moneys
secured by
existing
mortgages.

21. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied only to the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Application
of moneys.

22. From and after the passing of this Act the name of the Company shall be "The Croydon Gas Company" and the Company shall have a common seal and the provisions of Part IV. (Change of name) of the Companies Clauses Act 1863 shall apply accordingly.

Change of
name of
Company.

23. From and after the first day of January one thousand nine hundred and five section 28 (Fixing maximum price with sliding scale as to dividend) of the Croydon Act of 1877 and section 11 (Standard price in Carshalton and Croydon districts respectively) of the Act of 1894 shall be read as if the words "standard price in any half year" were substituted for the words "standard price in any year" the words "standard rates of dividend shall for such half year" were substituted for the words "standard rates of dividend for such year" and the words "two shillings and sixpence in the hundred pounds" were substituted for the words "five shillings in the hundred pounds per annum."

Sliding scale
as to divi-
dend on ex-
isting capital
to be de-
pendent on
price in any
half year.

24. From and after the first day of January one thousand nine hundred and five section 13 (If profits exceed the amount limited excess to be invested and form an insurance fund) of the Croydon Act of 1877 shall be read as if the words "half year"

Insurance
fund.

A.D. 1904. were substituted for the word "year" the words "ten shillings per centum per half year" were substituted for the words "one pound per centum per annum" and the words "dividend on the stocks of the Company at the authorised rates" were substituted for the words "rates of dividend by this Act authorised."

Application
of excess of
profits over
prescribed
rates of divi-
dend.

25. From and after the first day of January one thousand nine hundred and five section 14 (Application of excess of profits over prescribed rate of dividend) of the Croydon Act of 1877 shall be read as if the words "half year" were substituted for the word "year."

Reserve
fund.

26. From and after the first day of January one thousand nine hundred and five section 15 (Power to create a reserve fund out of dividends in excess of the prescribed rate of dividend) and section 16 (Application of reserve fund) of the Croydon Act of 1877 shall be read as if the words "half year" were throughout substituted for the word "year."

Renewal
fund.

27.—(1) The directors of the Company may if they think fit in any half year appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per centum on the paid-up capital of the Company including premiums to be called "the renewal fund" for the purpose of providing for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes.

(2) Such fund may be invested in any securities in which trustees are for the time being authorised by law to invest money and the dividends and interest arising from such securities may also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to ten per centum on the nominal amount of the capital of the Company for the time being issued and paid up.

(3) When and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend.

(4) If such fund be at any time reduced below the said sum it may thereafter be made up in manner hereinbefore provided to that sum and so from time to time as often as such reduction shall happen.

(5) Resort may from time to time be had to such fund for the purposes aforesaid notwithstanding that the same may not have reached or may have been reduced below the full amount of ten per centum upon the capital of the Company as aforesaid. A.D. 1904.

28. From and after the passing of this Act the quorum of a meeting of directors shall be three. Quorum of directors.

29. The Company may stop up the road in the county borough of Croydon in the county of Surrey known as Brook Road leading from Waddon Marsh Lane to the Croydon and Wimbledon branch railway of the London Brighton and South Coast Railway Company and being numbered 349 on the $\frac{1}{2500}$ Ordnance map edition 1894-96 London sheet CLVII. and thereupon all rights of way over that road shall be extinguished but such road shall not be stopped up unless the Company are owners or lessees in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of such houses and lands may otherwise agree. Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. Power to stop up road.

30. Subject to the provisions of this Act the Company may upon the lands described in the Schedule to this Act erect maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within their limits of supply and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas. Provided that nothing in this section contained shall prejudice any covenants contained in any lease under which the land secondly described in the said Schedule may be held. Powers as to construction and maintenance of gas-works &c.

31. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedules to the Croydon Gas Act 1866 the Croydon Act of 1877 the Carshalton Act of 1877 and this Act any lands and hereditaments not exceeding in the whole twenty-five acres which the Company may require for the purposes Power to purchase lands by agreement.

A.D. 1904. of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands authorised to be so used by any Act or Order affecting the Company's undertaking.

As to price in district formerly supplied by Carshalton Company.

32. Notwithstanding anything contained in section 11 of the Act of 1894 from and after the first day of July one thousand nine hundred and four the price actually charged by the Company for gas supplied in the district formerly supplied by the Carshalton Company shall not for a period of three years from the said first day of July one thousand nine hundred and four be more than threepence per one thousand cubic feet in excess of the price for the time being charged in the district formerly supplied by the original Croydon Company and from and after the first day of July one thousand nine hundred and seven the price charged by the Company shall be the same throughout the whole of their existing limits of supply.

Dwelling-houses for persons in Company's employ.

33. The Company may purchase or take on lease dwelling-houses for persons in their employ and may erect maintain and let dwelling-houses for such persons upon the lands for the time being belonging to or leased by the Company.

Power to lay pipes in streets not dedicated to public use.

34. The Company may on the application of the owner or occupier of any premises within their limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply.

For protection of corporation of Croydon.

35. For the protection of the mayor aldermen and burgesses of the county borough of Croydon (in this section called "the corporation") the following provisions shall apply and have effect unless otherwise agreed upon in writing between the corporation and the Company (that is to say):—

(1) The word "parties" in the proviso to the section of this Act the marginal note of which is "Power to stop up road" shall include the corporation:

(2) In settling the compensation to be paid to the corporation by the Company for the interests of the corporation in Brook Road, (including the removal of the surface water sewer and pipes and apparatus of the corporation) which will be affected by the stopping up of the said

road such interests shall be deemed to be interests in lands for the purposes of the provisions of the Lands Clauses Acts in the said section referred to and the provisions of those Acts with respect to the purchase and taking of lands otherwise than by agreement are incorporated herewith :

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- (3) When the Company interfere with any street or road laid out but not dedicated to public use in the borough under the powers contained in the section of this Act the marginal note of which is "Power to lay pipes in streets not dedicated to public use" the provisions of sections 8 9 10 11 and 12 of the Gasworks Clauses Act 1847 so far as they are applicable for the purposes of the said section shall extend and apply *mutatis mutandis* to and for the purposes thereof and shall be construed as if the corporation were the persons having the control or management of such street or road within the meaning of the said Act.

36. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper order the Company may cease to supply gas to such consumer for so long as such default shall continue The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluc-
tuators for
gas engines.

37. The Company may acquire hold and use patent rights or licences not being exclusive for the use of inventions in relation to the manufacture of gas or in relation to the distribution or supply of gas and also in relation to the manufacture conversion or utilisation of residual products and materials arising in or resulting from the manufacture of gas.

Company
may acquire
patent rights.

38. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the recited Acts and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having

No penalty
for failure to
supply gas
in case of
unavoidable
cause.

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Power to supply gas fittings &c. for heating and other purposes and fittings not to be subject to distress.

39.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves dynamos motors ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Gas consumers to give notice to Company before removing.

40. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

Power to refuse supply to persons in debt for other premises.

41. If a person requiring a supply of gas from the Company for any premises occupies or has occupied other premises at which gas was supplied to him by the Company and has not paid all gas or meter rent and all remuneration or rents due from him to the

Company they may refuse to furnish to him a supply of gas until he pays the same. A.D. 1904.

42. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company. Notice to discontinue supply of gas.

43. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company. Period of error in defective meters.

44. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon. Company may contract with local authority &c. for supply in bulk.

45. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

46. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1904. The SCHEDULE referred to in the foregoing Act.

Firstly A piece of land situate in the county borough of Croydon abutting upon the north-east side of the Croydon and Wimbledon branch railway of the London Brighton and South Coast Railway Company and now belonging or reputed to belong to and in the occupation of the Company containing by admeasurement eight acres three roods and sixteen perches or thereabouts and being the field numbered 357 on the $\frac{1}{2500}$ Ordnance map edition 1894-96 London sheets CLIV. and CLVII.

Secondly A piece of land situate in the said county borough abutting on the south-west side of the said Croydon and Wimbledon branch railway belonging or reputed to belong to the Ecclesiastical Commissioners for England containing by admeasurement ten acres and three roods or thereabouts and being the field numbered 348 on the said Ordnance map edition 1894-96 London sheet CLVII.

Thirdly The site of the road in the said county borough known as Brook Road leading from Waddon Marsh Lane to the said Croydon and Wimbledon branch railway and being numbered 349 on the said Ordnance map edition 1894-96 London sheet CLVII. when stopped up and appropriated under the provisions of the foregoing Act.

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